



DAILY EDITORIAL SUMMARY

06th May 2026

Topics to be covered:

- ✓ **The Forest Rights Act (FRA) 2006 and Implementation Challenges**
- ✓ **Women's Health in Midlife (Ages 25–60): Challenges and Priorities**
- ✓ **Project 17A & Frigates**
- ✓ **Bulldozer Justice**

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Topics

The Forest Rights Act (FRA) 2006 and Implementation Challenges

GS PAPER II: Mechanisms, laws, institutions and Bodies constituted for the protection and betterment of these vulnerable sections.

Context:

Historically, forest-dwelling tribal communities were alienated by the **Indian Forest Act, 1927**, and the **Forest Rights Act, 2006** was enacted to correct this historical injustice by recognizing their rights over forest resources.

Historical Injustice & How It All Began:

- ❖ **Pre-1927 Status:** For centuries, tribal communities lived in forests and relied on forest produce for their livelihoods.
- ❖ **The Shift:** When the British arrived, their primary interest was acquiring **timber**. To facilitate this, they introduced a legal framework that changed the status of tribals in their own homes.

Indian Forest Act 1927:

- ❖ This Act officially declared forests as **state property**.
- ❖ It effectively turned tribal inhabitants into "**outsiders**" on their own land, marking the beginning of nearly a century of exploitation and systemic injustice.

Forest Rights Act 2006

- ❖ **Purpose:** Enacted to correct the "historical injustice" faced by forest-dwelling communities.
- ❖ **Promise:** It promised "**Jal, Jangal, Jameen**" (water, forest, land) and mandated that those living in forests for generations would no longer be considered outsiders; their land claims would be legally acknowledged.
- ❖ **Empowerment:** The Act designated the **Gram Sabha** as a highly powerful body, as it is the authority that initiates and acknowledges forest rights claims.

The Tharu Tribes Case (Lakhimpur Kheri, UP)

- ❖ **What Happened:** Members of the Tharu community, living near the UP-Nepal border, filed claims for their forest rights under the FRA 2006.
- ❖ **DLC Rejection:** The **District Level Committee (DLC)**, which provides final approval for rights, rejected the Tharu community's claims.
- ❖ **The Erroneous Reasoning:** The DLC used a **year 2000 Supreme Court judgment** (which banned the de-reservation of forests) as the basis for the rejection, ignoring the fact that the 2006 Act was passed specifically to override such hurdles.

District Level Committee (DLC) Composition:

The District Level Committee consists of **six members**:

- ❖ District Collector (Head)

Concept of "Jal, Jungle, Jameen"

- ❖ **Meaning:** Refers to *water (jal)*, *forests (jungle)*, and *land (jameen)*—the core natural resources essential for the livelihood, identity, and culture of tribal and rural communities.
- ❖ **Philosophy:** Emphasizes a symbiotic relationship between communities and nature, based on sustainable use, conservation, and traditional knowledge systems.
- ❖ **Historical Context:** Emerged as a resistance slogan against colonial and post-colonial policies that alienated indigenous people from their resources.
- ❖ **Rights-Based Approach:** Advocates community ownership and control over natural resources, reflected in laws like the Forest Rights Act, 2006.
- ❖ **Contemporary Relevance:** Central to debates on environmental justice, tribal rights, displacement, and inclusive development.

- ❖ Divisional Forest Officer
- ❖ District Tribal Welfare Officer
- ❖ Three members of the Zila Panchayat.

Core Legal Principles & DLC Violation:

- ❖ **Principle 1 (The Non-Obstante Clause):** The FRA 2006 contains a "non-obstante clause" ("Notwithstanding anything contained..."), which means its provisions prevail over any other conflicting laws or previous court judgments.
- ❖ **Principle 2 (Legality of Rejections):** Under Sections 7 and 8 of the FRA, the fraudulent or improper rejection of valid claims by an official is a **punishable offense**.
- ❖ **DLC Violation:** By prioritizing a 2000 judgment over a 2006 Parliamentary Act, the DLC failed to understand that a newer law with a non-obstante clause nullifies previous contradictory legal positions.

The Allahabad HC Order (2010)

- ❖ **The Court rebuked** the DLC, questioning the competence of the officers for failing to understand that the FRA 2006 is the prevailing law.
- ❖ While the Court noted the error, it chose to be **lenient** and did not impose the punishments allowed under Sections 7 and 8 against the bureaucrats involved.

Comparative Analysis: HC Approaches to FRA: The implementation of the FRA varies significantly across different High Courts:

- ❖ **Good Example (Uttarakhand High Court):** The UK High Court ruled that tribals cannot be evicted from forests until their claims under the FRA have been fully verified.
- ❖ **Problematic Approach (Madras High Court):** In similar cases, the Madras High Court labeled tribals as "encroachers" and ordered immediate eviction, claiming that verifying claims was a "waste of time".

Key Constitutional Issue & Grazing Rights:

- ❖ **Grazing Rights Battleground:** The FRA 2006 explicitly grants forest dwellers the right to graze their animals.
- ❖ **Constitutional Conflict:** The Madras High Court refused to implement these grazing rights, insisting on following the **Tamil Nadu Forest Act 1882** instead.
- ❖ **Article 254:** This creates a constitutional issue because, under **Article 254**, a law made by Parliament (FRA 2006) **should prevail over a state law** (Tamil Nadu Forest Act) if there is a conflict. The court's refusal to prioritize the Central Act represents a significant deficiency in the Act's implementation.

The Significance of FRA 2006:

- ❖ It **acknowledges the claims of tribal communities** over forest land and resources.
- ❖ It empowers the **Gram Sabha** as the primary body to initiate the process of acknowledging forest rights.

Mains Practice:

Q. Despite the legislative intent of FRA 2006 to undo historical injustices, conflicting judicial pronouncements and bureaucratic reluctance continue to alienate forest dwellers. Critically analyze with recent examples. (250 Words, 15 Marks)

Women's Health in Midlife (Ages 25–60): Challenges and Priorities

Subject: GS 1: Role of Women and Women's Organisation

Context:

Current government health schemes often target adolescent girls (0-25 years) or elderly women (60+), leaving a significant **policy blind spot** for women aged **25 to 60**.

Key Terms to Know:

- ❖ **Majhdhaar Initiative:** Research by PCI India + AIIMS Patna; first major study on the health of women aged 25–60.
- ❖ **Quarter-to-Midlife Women:** Term coined by researchers Dr. Shivangi Shankar & Dr. Sudipta Mondal for women aged 25–60.
- ❖ **The ‘Missing Middle’:** Women in this age group are excluded from both maternal and elderly health schemes.

About The "Triple Burden" and Socio-Economic Role:

- ❖ Women in this age group, like the example of "Radha," face a triple burden: **childcare, eldercare, and professional/economic responsibilities**.
- ❖ They play a "peak economic role" in families and Self-Help Groups (SHGs). If their health fails, entire families can fall below the poverty line.
- ❖ **Health Transitions and Barriers:**
 - This stage marks a shift from communicable to **non-communicable diseases (NCDs)** like diabetes and heart disease.
 - Barriers to care include **socio-cultural neglect** (women eating last or ignoring their own health), mental health issues (anxiety/depression), and a lack of financial independence for major medical expenses.

Why are Quarter-to-Midlife Women neglected?

- ❖ This phase represents the largest and most active segment of a woman's life, yet it is largely ignored in health policy.
 - **Post-reproductive exclusion:** Many women exit maternal health programmes after childbearing years.
 - **Pre-elderly neglect:** They are not yet covered under geriatric care systems.

Why Focus on Quarter-to-Midlife Women is Crucial?

- ❖ **Economic Growth:** Healthy midlife women enhance productivity, boosting household income and overall economic output.
- ❖ **Intergenerational Impact:** Women's health directly influences family nutrition, immunity, and wellbeing across generations.
- ❖ **Demographic Significance:** Rising life expectancy makes midlife a critical phase for ensuring healthy ageing.
- ❖ **Gender Equity:** Focusing on this group affirms women's health rights beyond reproductive roles.
- ❖ **NCD Prevention:** Early screening reduces long-term disease burden and healthcare expenditure.
- ❖ **Human Capital Formation:** Healthy women improve workforce efficiency and caregiving quality.
- ❖ **Labour Force Participation:** Better health enables sustained engagement in economic activities.
- ❖ **Social Stability:** Healthy women strengthen community networks and grassroots governance.

Major Issues Faced by Quarter to Midlife Women:

- ❖ **Policy Neglect:** Health policies prioritise maternal and adolescent care, leaving midlife women outside focused interventions.
- ❖ **Hidden Disease Burden:** Poor screening and awareness cause late diagnosis of NCDs, raising health risks and costs.
- ❖ **Socio-Cultural Barriers:** Gender norms and family prioritisation delay women's healthcare and preventive practices.
- ❖ **Data Deficiency:** Absence of longitudinal and life-course data creates gaps in targeted policymaking.
- ❖ **Financial Constraints:** Limited autonomy and high out-of-pocket expenses restrict timely access to healthcare.

- ❖ **Mental Health Gap:** Psychological issues remain under-recognised due to stigma and inadequate services.
- ❖ **Occupational Risks:** Informal sector work exposes women to unsafe conditions without health protections.
- ❖ **Fragmented Care System:** Lack of integrated, continuous healthcare leads to gaps in comprehensive service delivery.

Global Best Practices: What Can India Learn?

Japan: Preventive Model

- ❖ **Ningen Dock:** Comprehensive preventive check-up for 40–60 age group; integrated with workplaces.
- ❖ Covers NCDs, cancers, menopause, and bone health.
- ❖ **Lesson for India:** Institutionalise regular midlife screening and link health with employment.

United Kingdom: NHS Health Checks

- ❖ **NHS Risk-Based Screening:** Targets 40–74 age group; focuses on heart disease, diabetes, and mental health.
- ❖ **Lesson for India:** Use primary care physicians (MBBS doctors at PHCs) for risk-based preventive check-ups.

WHO: Life-Course Approach

- ❖ **Life-Cycle Approach:** Do not view health in silos. Integrate promotive, preventive, curative, and rehabilitative care from childhood to old age.
- ❖ **Lesson for India:** Move away from scheme-based fragmentation toward equity and life-cycle health models.

Way Forward

- ❖ There is a need to adopt a **life-cycle approach to women's health**, ensuring continuous policy attention across all age groups.
- ❖ Strengthening **preventive healthcare systems**, especially at the primary level, can help in early detection and management of diseases.
- ❖ Addressing **patriarchal norms** and redistributing unpaid care work is essential for achieving gender equality.
- ❖ Enhancing **awareness, mental health support, and data collection mechanisms** will enable more inclusive and responsive policymaking.

Conclusion

- ❖ The **issue of the “Missing Middle”** highlights deeper structural inequalities within Indian society, where women's contributions are often undervalued beyond their reproductive roles.
- ❖ Addressing this gap is essential for ensuring **gender justice, improving public health outcomes, and achieving inclusive and sustainable social development**.

Mains Practice:

- Q. Despite being the backbone of the care economy and informal sector, midlife women (25–60 years) remain a ‘missing middle’ in India's health policies. Analyze the structural challenges faced by this demographic and suggest measures for a life-course healthcare approach. (250 Words, 15 Marks)

Project 17A & Frigates

GS III: Security Challenges and Their Management

Context:

Project 17A is a ₹45,000 crore initiative by the Indian Navy to develop **Nilgiri-class frigates**, which are fast, stealthy warships capable of independent operations or protecting a fleet.

What is Project 17A?

- ❖ **Follow-on programme** to Project 17 for building advanced stealth frigates for the Indian Navy.
- ❖ Focuses on **Nilgiri-class stealth frigates** with improved design, automation, and survivability.

- ❖ Estimated cost: ~₹45,000 crore.
- ❖ Recent development: Commissioning of **INS Mahendragiri (7th frigate)**.

What is a Frigate?

- ❖ A **fast, agile, multi-role warship** used for:
 - Escorting fleets and protecting merchant vessels
 - Independent operations in maritime zones
- ❖ Equipped with:
 - **Anti-air warfare systems**
 - **Anti-surface warfare capabilities**
 - **Anti-submarine warfare (ASW) systems**

Strategic Importance

- ❖ **Ensures** maritime security in the Indian Ocean Region (IOR)
- ❖ Counters **growing Chinese naval presence**
- ❖ Protects **Sea Lines of Communication (SLOCs)**
- ❖ Enhances **power projection and naval deterrence**

Key Issues Highlighted:

- ❖ **“Paper Commissioning” Concern:** Ships are declared commissioned even when **critical systems (engines, sensors, weapons)** are incomplete.
 - Raises concerns over **operational readiness vs symbolic milestones**.
- ❖ **Import Dependence:** Around 75% claimed indigenisation is largely **structural/mechanical**. Critical components still imported:
 - Propulsion systems
 - Advanced radars & sensors
 - Electronic warfare systems
 - Precision weapons
- ❖ **Capability Gaps (Sensor Deficit):** Effective naval warfare depends on **high-quality sensors and sonar systems**.
 - Weak detection capability undermines **anti-submarine warfare**, especially against China.
- ❖ **Infrastructure & Ecosystem Gaps:** Lack of **support infrastructure and integration systems** reduces effectiveness.
 - Similar to having assets without enabling systems.
- ❖ **Misalignment of Use:** High-end frigates being used for **low-intensity threats (piracy, rebels)**.
 - Results in **inefficient resource utilisation** (“using a cannon to kill a mosquito”).

Operational Framework: Detect–Decide–Respond

- ❖ **Detect:** Satellites & underwater sensors identify threats
- ❖ **Decide:** Naval HQ analyses data and plans response
- ❖ **Respond:** Deployment of naval assets like frigates
- ❖ **Issue:** Weak sensors reduce effectiveness of this framework.

Way Forward

- ❖ **True Indigenisation:** Focus on core technologies (engines, sensors, weapons)
- ❖ **Capability-Based Commissioning:** Ensure full operational readiness before induction

- ❖ **Strengthen Sensor Ecosystem:** Invest in advanced sonar and surveillance systems
- ❖ **Balanced Naval Strategy:** Use appropriate platforms for different threat levels
- ❖ **Supply Chain Resilience:** Reduce dependence on geopolitically unstable partners

Conclusion:

Project 17A marks a significant step in strengthening India's naval capabilities, but **capability gaps, import dependence, and premature commissioning** undermine its effectiveness. A shift from **symbolic indigenisation to substantive technological self-reliance** is essential for ensuring credible maritime security, especially in the context of rising challenges in the Indian Ocean Region.

Mains Practice:

- Q. Despite significant investments in indigenous naval shipbuilding, India's maritime security architecture continues to face critical capability gaps. Examine the structural challenges in achieving effective naval self-reliance and suggest measures to strengthen operational preparedness. (150 Words, 10 Marks)

Bulldozer Justice

GS II: Polity & Governance

Context:

A child gifting a bulldozer toy to Yogi Adityanath highlights the **growing normalisation of "bulldozer justice"** as a political symbol.

What is Bulldozer Justice?

- ❖ Use of **demolitions as punitive action** against accused persons, often **before due legal process is completed**.
- ❖ Represents **extrajudicial, instant justice** by the executive.

Historical Background

- ❖ **Not new; similar demolitions** occurred during the Emergency in India (e.g., Turkman Gate demolitions).
- ❖ Earlier seen as **state excess**, now projected as **strong governance**.

Why is it Gaining Acceptance?

- ❖ **Judicial delays:** Over 5.5 crore pending cases; shortage of judges.
- ❖ **Public demand for instant justice** in an era of quick service delivery.
- ❖ **Populism:** Perception of decisive leadership and swift punishment.

Key Concerns

- ❖ **Violation of Rule of Law:** Undermines **due process** and presumption of innocence.
 - Punishment before conviction contradicts constitutional principles.
- ❖ **Breakdown of Separation of Powers:** Executive acts as **investigator, judge, and executioner simultaneously**.
 - Violates doctrine of separation of powers.
- ❖ **Extrajudicial Nature:** Converts legal enforcement into **spectacle rather than procedure**.
 - Blurs line between lawful punishment and state coercion.
- ❖ **Arbitrary State Action:** Raises questions:
 - Why were illegal structures allowed earlier?
 - Is demolition punishment or law enforcement?
- ❖ **Risk of Majoritarianism:** Public approval cannot replace **constitutional legality**.
 - Leads to **mob-like justice by the state**.

- ❖ **Erosion of Institutional Trust:** Weakens faith in judiciary and legal processes.
 - Encourages vigilante mindset.

Way Forward

- ❖ **Strengthen Judiciary:**
 - Fill vacancies, increase judge-to-population ratio
 - Expand court infrastructure
- ❖ **Fast-Track Justice:**
 - Dedicated courts for heinous crimes
 - Time-bound trials
- ❖ **Improve Governance:**
 - Better investigation and prosecution
 - Accountability in urban planning and enforcement
- ❖ **Uphold Constitutionalism:**
 - Ensure strict adherence to **due process and rule of law**

Conclusion

- ❖ Bulldozer justice may offer instant gratification, but it undermines constitutional governance.
- ❖ A democratic state derives legitimacy from **fair procedures, not swift punishment**, and must focus on **institutional strengthening rather than symbolic coercion**.

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